

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
JESUS MARTINEZ and ARLENNY MARTINEZ,

Plaintiffs,

-against-

THE CITY OF NEW YORK, POLICE OFFICER
MICHAEL REMY, POLICE OFFICER CHRISTOPHER
LEONARD and JOHN DOES-Police Officers as yet
unidentified,

Defendants.

-----X

TO THE ABOVE NAMED DEFENDANT:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in the case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded herein.

Defendant's address:

THE CITY OF NEW YORK
100 Church Street
New York, New York 10007

POLICE OFFICER MICHAEL REMY
Tax ID # 955371
c/o New York City Police Department- 52nd Precinct
3016 Webster Avenue
Bronx, New York 10467

POLICE OFFICER CHRISTOPHER LEONARD
Tax ID # 960796
c/o New York City Police Department- 52nd Precinct
3016 Webster Avenue
Bronx, New York 10467

Dated: Brooklyn, New York
November 9, 2017

Index #
Date of filing:

Plaintiffs designate Bronx
County as the place of trial

Basis of the venue is the Locus
of Occurrence

SUMMONS

Plaintiffs reside at
3182 Rochambeau Avenue
Apt. # 4K
Bronx, New York 10467

County of Bronx

Plaintiff's attorneys:

RUBENSTEIN & RYNECKI, ESQS.
16 Court Street, Suite 1717
Brooklyn, New York 11241
(718)522-1020

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX-----X
JESUS MARTINEZ and ARLENNY MARTINEZ,

Index No.:

Plaintiffs,

COMPLAINT

-against-

THE CITY OF NEW YORK, POLICE OFFICER
MICHAEL REMY, POLICE OFFICER CHRISTOPHER
LEONARD and JOHN DOES-Police Officers as yet
unidentified,

Defendants.

-----X

Plaintiffs, by their attorneys, RUBENSTEIN & RYNECKI, ESQS., complaining of the defendants herein, upon information and belief, respectfully show to this Court, and allege as follows:

**AS AND FOR A FIRST CAUSE OF ACTION FOR ASSAULT
AND BATTERY ON BEHALF OF JESUS MARTINEZ**

1. That at all times hereinafter mentioned, plaintiffs were and still are residents of the County of Bronx, City and State of New York.
2. That all times hereinafter mentioned, the defendant, THE CITY OF NEW YORK, was and still is a municipal corporation, duly organized and existing pursuant to the laws of the State of New York.
3. That the defendant, THE CITY OF NEW YORK, maintains a police force known as the NEW YORK CITY POLICE DEPARTMENT.
4. That prior hereto on March 29, 2017, and within the time prescribed by law, a sworn Notice of Claim stating, among other things, the time when and place where the injuries and damages were sustained, together with plaintiff's demands for adjustment or payment thereof, was served and that thereafter the CITY OF NEW YORK refused or neglected for more than (30) days and up to the commencement of this action to make any adjustment or payment thereof, and that thereafter, and within the time provided by law, this action was commenced.

5. That on June 28, 2017, pursuant to the General Municipal Law, Statutory 50-H hearings of the plaintiffs were held.

6. That on February 11, 2017, and at all times hereinafter mentioned and upon information and belief, defendant, THE CITY OF NEW YORK, employed POLICE OFFICER MICHAEL REMY, POLICE OFFICER CHRISTOPHER LEONARD and JOHN DOES-Police Officers as yet unidentified, as agents, servants and/or employees.

7. That on February 11, 2017, and at all times hereinafter mentioned and upon information and belief, the plaintiff, JESUS MARTINEZ, was lawfully present at or about the premises known as 3182 Rochambeau Avenue, specifically in Apartment #4K, County of Bronx, City and State of New York.

8. That on February 11, 2017, and at all times hereinafter mentioned and upon information and belief, the plaintiff, JESUS MARTINEZ, was assaulted and battered by defendants, POLICE OFFICER MICHAEL REMY, POLICE OFFICER CHRISTOPHER LEONARD and JOHN DOES-Police Officers as yet unidentified, who were acting within the scope of their employment with the defendant, THE CITY OF NEW YORK, at the aforesaid premises.

9. That on February 11, 2017, and at all times hereinafter mentioned and upon information and belief, the aforementioned assault and battery was performed knowingly, intentionally and willfully.

10. That on February 11, 2017, and at all times hereinafter mentioned and upon information and belief, the defendants, POLICE OFFICER MICHAEL REMY, POLICE OFFICER CHRISTOPHER LEONARD and JOHN DOES-Police Officers as yet unidentified, who committed the aforementioned assault and battery upon the plaintiff, JESUS MARTINEZ, were acting within the scope of their employment with the defendant, THE CITY OF NEW YORK.

11. That on February 11, 2017, and at all times hereinafter mentioned and upon information and belief, the assault and battery on the plaintiff was without probable cause and

was not the result of an appropriate arrest.

12. By reason of said assault and battery the plaintiff was caused to suffer severe and serious injuries in and about diverse parts of the person, and suffered great pain, distress, mental shock, mental anguish and psychological trauma and was otherwise injured.

13. By the reason of the foregoing, the plaintiff, JESUS MARTINEZ, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A SECOND CAUSE OF ACTION FOR NEGLIGENT
HIRING AND RETENTION ON BEHALF OF JESUS MARTINEZ**

14. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "13" inclusive with the same force and effect as if more fully set forth at length herein.

15. That defendant, THE CITY OF NEW YORK, did not exercise reasonable care and diligence in the selection, engagement, employment and training of their agents, servants, and employees and were negligent in the hiring, training and retention of POLICE OFFICER MICHAEL REMY, POLICE OFFICER CHRISTOPHER LEONARD and JOHN DOES-Police Officers as yet unidentified, who assaulted, battered and violated the civil rights of the plaintiff, JESUS MARTINEZ.

16. That the defendant, THE CITY OF NEW YORK, had prior knowledge of the inappropriate, unlawful, and improper conduct of the defendants, POLICE OFFICER MICHAEL REMY, POLICE OFFICER CHRISTOPHER LEONARD and JOHN DOES-Police Officers as yet unidentified, and continued to employ them and allowed them to be in contact with the public at large.

17. By the reason of the foregoing, the plaintiff, JESUS MARTINEZ, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A THIRD CAUSE OF ACTION FOR INTENTIONAL
AND NEGLIGENT INFLICTION OF EMOTIONAL
DISTRESS ON BEHALF OF JESUS MARTINEZ**

18. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "17" inclusive with the same force and effect as if more fully set forth at length herein.

19. That the defendant, THE CITY OF NEW YORK, including but not limited to POLICE OFFICER MICHAEL REMY, POLICE OFFICER CHRISTOPHER LEONARD and JOHN DOES-Police Officers as yet unidentified, acted intentionally, recklessly and with utter disregard to the consequences of their actions and caused severe emotional distress to the plaintiff through their actions.

20. Said actions exceeded all reasonable bounds of decency, were outrageous and shocking and resulted in severe emotional distress to the plaintiff, JESUS MARTINEZ.

21. That as a result of said intentional and negligent acts, the plaintiff, JESUS MARTINEZ, become sick, sore, lame and disabled, received severe and serious injuries in and about diverse parts of his person and suffered great physical pain, distress, mental shock, mental anguish and psychological trauma and was otherwise injured.

22. By reason of the foregoing, the plaintiff, JESUS MARTINEZ, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A FOURTH CAUSE OF ACTION FOR CIVIL
RIGHTS VIOLATION ON BEHALF OF JESUS MARTINEZ**

23. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "22" inclusive with the same force and effect as if more fully set forth at length herein.

24. That the defendant, THE CITY OF NEW YORK, including but not limited to POLICE OFFICER MICHAEL REMY, POLICE OFFICER CHRISTOPHER LEONARD and JOHN DOES-Police Officers as yet unidentified, were acting under the color of law and within

the scope of their authority, assaulted and battered the plaintiff, JESUS MARTINEZ, in violation of 42 U.S.C.A. section 1983 as well as other applicable state and federal laws.

25. That the defendant, THE CITY OF NEW YORK, including but not limited to POLICE OFFICER MICHAEL REMY, POLICE OFFICER CHRISTOPHER LEONARD and JOHN DOES-Police Officers as yet unidentified, acting under color of law and within the scope of their authority, deprived the plaintiff, JESUS MARTINEZ, of liberty without due process and without reasonable cause in violation of 42 U.S.C.A. Section 1983 as well as other applicable state and federal laws.

26. The defendants had deprived the plaintiff by their actions of his civil rights as guaranteed by statute.

27. That the assault and battery was in violation of the civil rights of the plaintiff, more particularly, 42 U.S.C.A. Section 1983 as well as other applicable state and federal laws.

28. That the deprivation by the defendants of plaintiff's civil rights was a result of said defendant, THE CITY OF NEW YORK, including but not limited to POLICE OFFICER MICHAEL REMY, POLICE OFFICER CHRISTOPHER LEONARD and JOHN DOES-Police Officers as yet unidentified, acting under color of law and within their authority as law enforcement officers within the employ of defendant, THE CITY OF NEW YORK.

29. That the defendants' actions were not privileged or immune.

30. That the defendant, THE CITY OF NEW YORK, including but not limited to POLICE OFFICER MICHAEL REMY, POLICE OFFICER CHRISTOPHER LEONARD and JOHN DOES-Police Officers as yet unidentified, were not acting with immunity when they deprived plaintiff of his civil rights.

31. By the reason of the foregoing, the plaintiff, JESUS MARTINEZ, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A FIFTH CAUSE OF ACTION FOR
PUNITIVE DAMAGES ON BEHALF OF JESUS MARTINEZ**

32. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "31" inclusive with the same force and effect as if more fully set forth at length herein.

33. The actions of the defendants herein-above alleged, were malicious, willful and grossly negligent.

34. That the defendant, THE CITY OF NEW YORK, authorized, permitted and ratified the unlawful and negligent acts of their agents, servants and/or employees, including but not limited to POLICE OFFICER MICHAEL REMY, POLICE OFFICER CHRISTOPHER LEONARD and JOHN DOES-Police Officers as yet unidentified, herein-above alleged.

35. By the reason of the foregoing, the plaintiff, JESUS MARTINEZ, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A SIXTH CAUSE OF ACTION FOR LOSS
OF SERVICES ON BEHALF OF ARLENNY MARTINEZ**

36. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "35" inclusive with the same force and effect as if more fully set forth at length herein.

37. That at all times hereinafter mentioned, plaintiff, ARLENNY MARTINEZ, was the lawful spouse of the plaintiff, JESUS MARTINEZ, and as such said plaintiff, ARLENNY MARTINEZ, was entitled to the society, services and consortium of the said plaintiff, JESUS MARTINEZ.

38. By reason of the aforementioned negligence of the defendants, the plaintiff, ARLENNY MARTINEZ, was deprived of the society, services and consortium of her spouse, plaintiff, JESUS MARTINEZ, and shall forever be deprived of said society, services and consortium.

39. That by reason of the foregoing negligence on the part of the defendants, the plaintiff, ARLENNY MARTINEZ, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

WHEREFORE, plaintiff, JESUS MARTINEZ, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **First** Cause of Action; plaintiff, JESUS MARTINEZ, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Second** Cause of Action; plaintiff, JESUS MARTINEZ, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Third** Cause of Action; plaintiff, JESUS MARTINEZ, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Fourth** Cause of Action; plaintiff, JESUS MARTINEZ, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Fifth** Cause of Action; plaintiff, ARLENNY MARTINEZ, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Sixth** Cause of Action; together with attorneys' fees, and the costs and disbursements of this action.

DATED: Brooklyn, New York
November 9, 2017

Yours, etc.,



ROBERT MIJUCA, ESQ.
RUBENSTEIN & RYNECKI, ESQS.
Attorneys for Plaintiffs
JESUS MARTINEZ
ARLENNY MARTINEZ
16 Court Street Suite 1717
Brooklyn, New York 11241
(718) 522-1020
File No.: 17JM02-11

ATTORNEY'S VERIFICATION BY AFFIRMATION

ROBERT MIJUCA, ESQ., an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a Member at RUBENSTEIN & RYNECKI, ESQS., attorneys of record for the Plaintiff/ Plaintiffs, I have read the annexed

SUMMONS AND COMPLAINT

and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

The reason I make the foregoing affirmation instead of the Plaintiff/Plaintiffs is because the Plaintiff/Plaintiffs is/are not presently in the County wherein the attorneys for the Plaintiff/Plaintiffs maintain their offices.

Dated: Brooklyn, New York
November 9, 2017


ROBERT MIJUCA, ESQ.